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(INTERGOVERNMENTAL RELATIONS MANAGEME NT)

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Governmental System

In every political system, there exist various levels of governmental powers and responsibilities. The nature and number of these levels of governmental powers and responsibilities tend to determine the pattern of relationship among them. This relationship is referred to as intergovernmental relations. It is the responses that have been developed to facilitate cooperative policy-making among divided governments within a federal system. Intergovernmental relations are supposed to play a "bridge-building" role to bring a degree of co-ordination and cooperation to divided power and it is upon this role, the ground norm of most federating states exists.

Intergovernmental Relations

The concept of Inter-governmental relations originated in the 1930s in the and by 1950s, it gained widespread currency following the creation of the Advisory Commission on Intergovernmental relations. But essentially whether we are referring to the evolution of inter-governmental relations in the United States of America or , such evolution came to the forefront following the beginning of the significant economic and social development programmes by the existing federal government in these countries that began to have greater impact on other levels of government. Such spirit of change in the American federal system did not go unnoticed.

The term 'intergovernmental relations' or 'IGR' is 'commonly used to refer to relations between central, regional and local governments, as well as governments between any one level, that facilitate the attainment of common goals through co-operation' . The term is 'commonly used to describe the interactions between the different levels of government within the state'.

Basically, IGR refers to the communication of orders of government in a federation; it assumes the need for interdependence among or between the orders of government. However, the patterns of IGR vary markedly among federal countries. Federalism is a result of a contract or agreement among the federating units, and the coordination among them is expedient for the smooth running of the federation. Federalism reflects the characteristics of a system that is a dynamic whole and made up of various parts. For efficiency and viability, each and every part must work co-ordinately, otherwise, the system collapses; this is true of a federation. No component part should work at cross purpose against the idea of federalism. Thus, for coordination to exist, interrelationship among the federating units is a necessity among the three levels of government of federations including .

According to Cameron (2004), the operation and practice of IGR may differ along the following lines, the degree of formal institutionalization, the extent to which they are decision-making in character, and the degree of transparency that exist in their operations. He refers to intergovernmental relations (IGR) as the geographical division of powers among the various spheres of government in the nation-state. He goes further to state that the division of powers implies that each structure has a unique and independe

nt role to play in the intergovernmental domain.

In the words of Wright (1988), intergovernmental relations (IGR) is 'an interacting network of institution s at national, provincial and local levels, created and refined to enable the various parts of government t o cohere in a manner which is appropriate to its institutional arrangements.' According to Ogunna (199 6: 350), intergovernmental relations (IGR) refer to 'the complex pattern of interactions, cooperation and i nter-dependence between two or more levels of government.' From these definitions, it can be inferred t hat IGR refers to the whole range of activities or interactions which takes place between and among the different levels of government within a country.

Also covered by IGR are the combinations and permutations of relationships among these levels of gov ernment within a country. It is important to state that in IGR, each level of government has an independ ent and unique role to play; for example, the local level has an independent role to play with the view to achieving common goals to the benefit and well-being of the entire country. In as much as intergovern mental relations are practiced within a public administration environment, it follows that 'there are nor ms and values to which it should subscribe' (Mathebula 2004). In view of this, the behaviour of public o fficials in performance of their duties should be guided by these norms and values.

Wright (1988) and Bogdanor (1991) state some of the essential features of IGR to include all governme ntal unit (central, state and local); actions of official and their attitudes (purposeful behaviour and perc eption of other participant in the system); regular interactions among officials (day to day contacts, pra ctical working relationship and continuity of action patterns); all public officials (elected and appointe d); and financial policy issues (intergovernmental revenues and expenditures, borrowing and debt, polic y formulation and implementation policy content - distributive and regulatory issues).

The concept of intergovernmental relations is most times used in reference to federal system of govern ment or interactions occurring between (or among) governmental units of all types and levels within, fo r instance, the United States Federal System. This makes intergovernmental relations as practically exis ting within federal system alone (Obi, 2007). Federal system of government heralds federalism. Federali sm, therefore, implies the existence in one country of more than one level of government each with diff erent expenditure responsibilities and taxing powers. It is essentially about government structure in the multilevel sense, rather than within a particular level of government, in the performance of government functions. There is a general believe that the concept of intergovernmental relations is often associated with federalism because the study of federalism, at its empirical level heavily stress the study of intergo vernmental relations (Bamidele, 1980).

Models of Intergovernmental Relations

Wright (1988) identifies three different models of 1GR which are coordinate or separated authority, incl usive authority and overlapping authority model.

1. **Coordinated or Separated Authority Model**

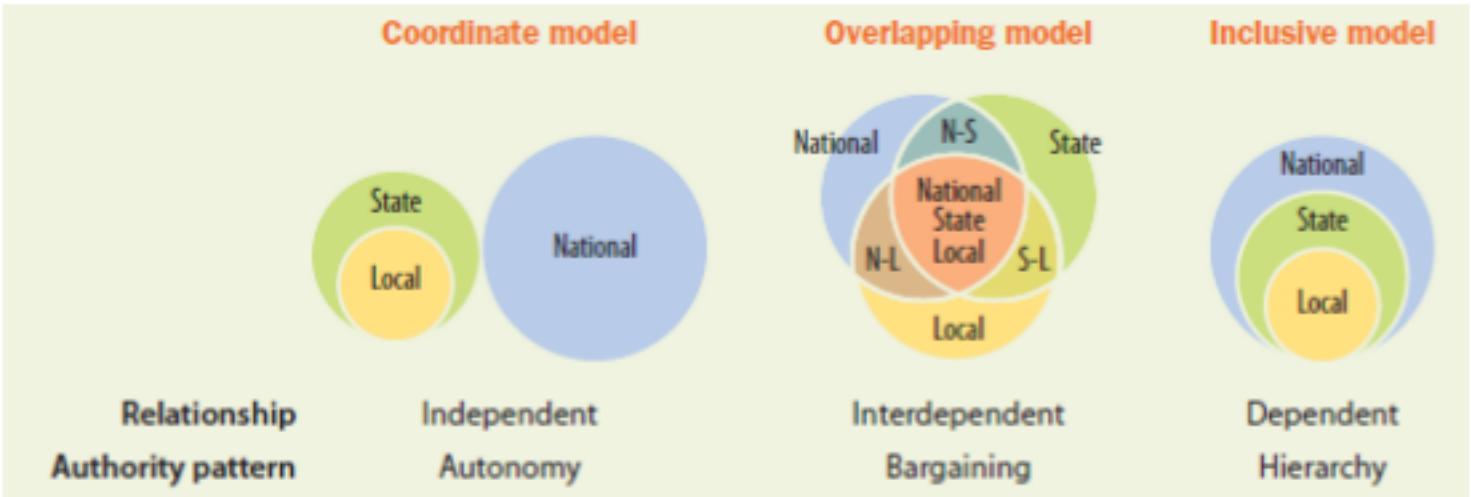
As for the coordinated or separated authority model in relation to constitutional status, national and state governments are created by the Constitution and their powers are derived there from; a nd the local governments are usually created by the state. In relation to the nature of power relati ons, relationships between two coequal government units are distinctly separated. The Supreme Court is the arbiter and the national-state relations are relatively modest as the two levels are onl y tangentially linked. Also, the powers of the two levels are exercised in a separated independent and autonomous fashion. And in relation to authority pattern, autonomy is minimal or nil in the l ocal governments. This model is found in classical federalism and Nigeria practiced such betwe en 1954 and 1966.

2. **Inclusive Authority Model**

As for the inclusive authority model in relation to constitutional status, the Constitution may or may not recognize and allocate powers to the levels of government. In relation to the nature of p ower relations, states and local governments are subordinate to the national government. They c annot challenge the centre. In relation to the authority pattern, there is no share of the state auth ority outside the national control and also no sphere of local authority outside the state control. This model is synonymous with centralizing federalism and Nigeria practiced it under the militar y rule (1966-1979 and 1983 - 1999).

3. **Overlapping Authority Model**

The last which is the overlapping model has a kind of constitutional status where the Constitutio n defines areas of autonomous actions by the respective jurisdictions (national, state and local). In relation to the nature of power relations, interactions among the three coequal levels of govern ment, that is, the national, state and local relations are governed by the Constitution and each un it can defend its constitutional powers, hence, there is limited and dispersed power. In relation to authority patterns, the negotiation of the terms of exchange or agreement is interlocking, interde pendent, balanced and bargaining. Also, the substantial areas of governmental operations involv e national, state and local officials simultaneously. Finally, there is a high degree of potential or actual independence signalling modest and uncertain areas of autonomy. This model was envis aged under both the 1979 and 1999 constitutions.



Instruments of Intergovernmental Relations

The foregoing suggests that IGR is conducted by many different means. A more focused look at some t ransactional approaches will demonstrate the international character of these instruments. Following t he major categories of study that characterize U.S. IGR, the overview will include intergovernmental fisc al relations, grants and program subventions, intergovernmental regulation, subnational governmental structures, political forces, and bureaucratic actions.

1. Intergovernmental Fiscal Relationships

Some analysts view fiscal relations as the essence of IGR. While there is no doubt that the fiscal tie is a basic one, it will be demonstrated that political and managerial determinations also formulate importa nt means of understanding IGR. Intergovernmental fiscal relationships do, however, help determine the parameters of interdependent systems. In virtually every Western nation the central government is the p rimary tax recipient, later distributing revenue through various means. Moreover, in most nations, accou nting for income transfers are usually central functions, regardless of whether nations administer progr ams nationally or sub-nationally.

While there have been some experiments with tax decentralization, the results are inconclusive. The rev enue raising powers of sub-national powers is thus subordinate. It is also variable. Rose's (1984) analy sis reveals that the range is from 46 percent and 41 percent of taxes raised by local and intermediate g overnments in Canada and Switzerland respectively, to 1 percent in the Netherlands and . In federal syst ems, sub-national governments raise 32 percent of taxes whereas in unitary systems only 14 percent of taxes are *not* raised by national governments. However, Rose also reports that there was virtually no cor relation between total tax as a share of the national product and the share of tax raised by state and lo cal government. He thus concludes that there is no need to complicate matters by examining difference s between federal and unitary systems.

Clearly what is more important is the revenue predominance of national governments and the intergove rnmental ties they create with fund subventions. The chief fiscal vehicles for subventions in most natio ns have been through grants. Three major forms of grants are used:
(1) unrestricted transfers of money for general sub-national government operation;

(2) broad purpose or block grants, which do not detail expenditures but are required to be used in specif ied general areas; and
(3) categorical or restricted purpose grants that specify expenditure areas and are subject to strict legal controls.

The growth of national grants to support sub-national governments appears to be a widespread corolla ry of the expanding welfare state (King 1984). In the , for example, national grants as a percentage of st ate-local receipts from government sources grew from 10 percent in 1955 to 26.5 percent in 1978, its hi gh-water mark. In dollars, the growth was from $3.2 billion to $77.9 billion. Spending in 1990 reached $133.8 billion (ACIR 1990).

Another critical fiscal consideration is expenditure controls placed by higher levels of government on lo wer levels. In unitary nations and in unitary relationships, such as those of many states and their local governments, controls may come by direct limit of revenue/expenditure levels. They may also come in t he form of program standards or fiscal expenditure rules, which are subject to later audits. In some are as, such as social services in , grantees negotiate program budgets, which in turn are related to negotiat ed forward planning and priorities. Another popular device for subvention is either a contract for the del ivery of specific services at a fixed rate or the outright purchase of services for negotiated fees. In some nations, funding agencies offer loans, loan sanctions, or cash advances as means of fiscal transfer. Fi nally, many nations, centrally or by second tier governments, "fiscally supervise" the financial operation s of sub-national governments, including the handling of regional and local government monies raised and expended locally. Supervision comes in many forms, ranging from verifying the propriety of expen ditures to training of local fiscal officers.

2. Intergovernmental Grants

Two of the three types of grants—categorical and bloc—are "conditional" and cement greater interdepen dence. Some work has been done that examines the type of grants to sub-national governments and th e types of program and policy ties they create, but they tend to be studies that focus on single countrie s. Literature on the economic impact of intergovernmental grants exists (King, 1984; Oates 1972) that s uggest that grants:
(1) subsidize programs where benefits accrue outside of the jurisdiction,
(2) serve as efficient and sometimes equitable resource transfer mechanisms, and
(3) can equalize fiscal "capacity across jurisdictions."

Others have questioned the economic benefit of grants, pointing to more political explanations. Anothe r issue is the stimulative effect of sub-national grants: do they induce increases in budgets? Research o n the "fly paper effect" (Oates 1990) suggests that unconditional grant money is not usually passed on in the form of lower taxes but "sticks where it hits." On the other hand, there is evidence from the United States that in the face of budget cuts, and even the elimination of national general grants, local govern ments do fill the gaps by increasing taxes and replacing lost grant funds, suggesting that the fly paper

effect may only work in one direction. A number of political factors relating to grants also raise importa nt research questions regarding IGR processes, including the:
(1) impact of grants on sub-national government policy agendas;
(2) impact on sub-national choices among competing claims;
(3) impact on the role and influence of program specialists versus program generalists;
(4) consequences of national officials' powers of review, oversight, and approval of sub-national action s;
(5) impact of choices relating to programming; and
(6) role of grant generated conflict and cooperation (Wright, 1988).

3. Intergovernmental Regulation

Regulatory activity that is actions of central or higher level governments exerting rules designed to affe ct the behaviour of sub-national/subordinate governments, constitutes yet another widely used instrum ent. Although it is a fairly universal political concern, regulation has been more of an analytical concern in the where regulations come in many forms:
(1) total or partial pre-emption of previous sub national regulatory activity;
(2) program requirements that are attached to grants;
(3) crossover regulations, that make a related action a condition of receiving national financial assista nce;
(4) requirements that a sub-national government not engage in certain activities; and (5) requirements f or the provision of services that are considered "custom and culture" but not written in laws.

Although many of these types of regulation also appear in other national contexts, there appears to be l ess concern over the growing "power" of central government regulators in other contexts. This may be e xplained somewhat by the shared power and limited government tradition in the . By contrast, European unitary states have a longer tradition of the imposition of requirements by a legally all-powerful centre. To a degree, this may be a function of greater political bargaining than goes on in other systems, to blu nt the impact of increased requirements through such means as negotiating compensatory concession s, for example, through revenue raising powers. This appears to be the case in France (Ashford, 1982).

Since regulation is so universal, several comparative research issues appear to be relevant. The most c ommonly asked question in intergovernmental regulation relates to "unfunded mandates" or sub-natio nal financial costs associated with meeting compliance (Stenberg, 1992). What is the intergovernment al fiscal burden placed on sub-national governments with a given regulatory effort? Another issue that appears central to IGR is a locational question, that is, should regulation be a central government functi on or should standards vary across jurisdictions in accordance with local circumstances? Another relat ed question would be, should standard-setting be national, local, or negotiated in some form? The argu ments for and against are both economic and political (Oates, 1990).

Two other issues relate to the examination of regulations as IGR instruments. First, what is the degree t

o which central governments use regulations or mandates as instruments of national policy priorities, a nd how successful are these approaches? Second, to what extent are regulations imposed on sub-natio nal governments really instruments imposed to solve national fiscal problems by shifting financial bur dens (Kettl, 1987; Walker, 1991)?

As the foregoing suggests, analyses of IGR regulation must not only include economic foci, but questio ns of political feasibility. Any effective regulatory program is based on political as well as economic crit eria. A regulatory program is said to require adequate support—be based on a sound theory identifying principal factors and causal linkages affecting policy objectives. It should also contain legislative struc turing of implementation that involves assignment to sympathetic and supporting agencies, and also p ossesses the capacity to operate and interact with supporters (Mazmanian and Sabatier, 1987; Reagan, 1987).

4. Governmental Structures

Why be concerned about structure? Because, as March and Olsen (1984) maintain, government instituti ons are important for structuring patterns of interaction in society. As a result, a host of comparative st udies have examined the structures of executive departments, patterns of governing systems (party sys tems, executives, distribution of power), and the machinery of government (bureaucratic capabilities, in stitutional environment of planning, social characteristics related to governance).

The framework of Peters (1988) appears to be useful. It focuses on extensiveness, centralization, hierar chy, and participation as major categories of analysis. This increased interest in the structures of gover nment as predictors of behaviour and public policy have obvious IGR implications. One of the earliest a nd best known government structure studies, *Democracies*, by Lijphart (1984) examines 21 systems wi th two broad classifications: the majoritarian (Westminister) and consensual (consociational) models. Among other characteristics, the former is defined by its unitary and centralized structures, whereas the latter ordinarily is decentralized and federal.

Blondell's (1982) classification scheme is based on two major dimensions, the more traditional unified versus divided governments and the emergent hierarchial versus collective decision making. He sugges ts that as multilevel governments are becoming more numerous, we are witnessing the gradual develop ment of this second dimension. This is particularly important as more groups demand political represe ntation, particularly with the emergence of a strong bureaucracy whose weight often tends to divide go vernments.

The clearest manifestation of multilevel government is the emergence of regional or second level gover nments in non-federal systems. France, Italy, Spain and are all cases where regionalization has been st rengthened in the past few decades. is in the process of strengthening its regional structures, that is, it s consolidated counties, particularly in the areas of planning and development. In cases where regional bodies have constitutional status, elected representative bodies, and legislative powers, such as that of Spain, regional governments are becoming federal in "arrangements" and considerably more powerful t

han mere decentralized authorities. They are becoming similar to intermediate governments in federal s ystems.

Study of intermediate governments in unitary states suggests that the rise of these structures is attribut ed to a number of factors: administrative efficiency and the need for regional planning as means of de aling with ethnic sub-national grievances of the periphery and to enhance democratization (Rousseau a nd Zariski, 1987, 270–271).
Emergent regional structures in all nations affect the patterns of IGR, introducing new levels of contact and interaction. Two additional prevalent organizational changes are the consolidation of local govern ment organizations and the increasing use of nongovernmental organizations to administer programs. Contrary to the practice in the , where the number of local government units has steadily increased (Wri ght, 1988), in many nations local general purpose governments (municipalities and counties, or their eq uivalent) have been consolidated, thereby reducing their numbers. This has been particularly true in Nor thern Europe.

The reason for this consolidation has been to create greater administrative efficiencies in administering welfare state programs, thereby eliminating small villages or rural counties that did not have the machi nery to carry out large national programs on a local basis. The other move, greater reliance on non-profi t and for profit organizations for the delivery of programs, is partially accountable to the desire for grea ter efficiency, but also reflects less reliance on the public sector to deal with public problems (Bennet, 1 990). As a result of these trends, four comparative areas of inquiry appear to be challenging:

(i) the role and impact of local government reorganization, including consolidation of units a s well as boundary changes;

(ii) creation of regional or intermediate bodies that plan and operate programs, as well as ser ve representational and decision-making purposes;

(iii) the apparent increasing use of quasi-governmental organizations and nongovernmental organizations as intergovernmental partners in expanding government functions; a nd

(iv) welfare state generated expansion of the number and type of national cabinet ministries with extensive sub-national interactions.

5. Political Forces

Many political forces obviously influence IGR. Officials' actions are as likely to be political as they are e conomic or administrative. Thus, factors such as use of elected position, political ideology, political par ties, military, or business role, and ethnic sub-national movements could be important factors in unders tanding the IGR of a particular country. One interesting framework for political analysis is that of Rhode s and Wright (1987). They refer to this category as the comparison of national government environmen ts, indicating that, while difficult to generalize across nations, they were able to identify three important unifying political factors: institutional structure, ideology of central elites, and the party system.

In regard to institutional structure (Rhodes and Wright, 1987), the centre sets the boundaries to sub-cent

ral actions. This power has its roots in the centre's constitutional and legislative resources, and to ignor e such factors is to impoverish analysis. Legal institutions do not constitute the whole of comparative analysis but they remain an essential component. The position of local authorities to operate within a f ederal system differs from those of non-federal systems, as do differences in nations with written and unmodified constitutions. Constitutionally reserved powers at sub-national levels restrain central power s in both unitary and federal systems. The importance of institutional structure on IGR behaviour has al so been suggested in other frameworks (Peters, 1988).

Elite ideologies also affect IGR. Following Tarrow's (1977) framework, Rhodes and Wright suggest that normative equality, technocratic reformism, and distributive welfare constitute different ways of respon ding. has moved from technocratic reformism in the 1960s and 1970s to democraticization in the 198 0s. Regional reform in has shifted elite behaviour from equality and welfare to more technocratic syste ms in which "effective coordination" became the cry of the 1980s. The revival of 19th century liberalism is another ideological position that has altered IGR, as less government and privatization becomes the hallmark of behaviour (Bennet, 1990). In a number of nations, this ideology has led to other "off-loadin g" or financial participation by local governments and the nongovernmental sector (, 1991).

Political parties in the Rhodes and Wright (1987) framework are the primary vehicles for ideologies and alternative actions. Strong central parties in the are obviously linked to "strong executive fostered unila teral action and the adoption of a command territorial operating code by the centre." In the Federal Rep ublic of Germany, by contrast, demand for participation and keen party competition has led to greater b argaining and centre accommodation, constraining centralizing strategies. Regionalism in has been a product of centre and left party strategies for some time. However, they also point to cross national forc es of party *convergence*; welfare state expansion led to substantial sub-national responsibility and disc retion; recession-generated resource squeezes led to sub-national cost sharing and privatization, often s haking the foundations of welfare-state generated IGR; program platforms that lead to sub-national gra nts in turn stabilize relationships between governments; success in sub-nationalism that in turn has led to "politicization" of territorial relations, such as nationalist movements (Sharpe, 1986). Thus, party sys tems have shaped IGR, and the reverse, in a reciprocal political fashion.

6. Bureaucratic Actions and Intergovernmental Communications

Since the predominant IGR actions are those of officials attempting to work out policy, it is these behav iours that have become the central foci. (1960:3) suggests: "it is human beings clothed with office wh o are the real determiners of what relations between units of government will be. Consequently the con cept of intergovernmental relations has to be formulated largely in terms of human relations and huma n behaviour."

Patterns of access of local officials to central governments have been studied comparatively in Wester n Europe (Page and Goldsmith, 1987). Contacts to national governments were channelled through a var iety of means: national interest groups of local authorities; political party channels, particularly when th e local and national parties were the same; "administrative entrepreneurship" or brokering and represent

ing on behalf of local government; through functional professional channels, a type of politics of expert ise; and by direct contacts by local elites to national officials. The emphasis on these channels varied s omewhat by nation, with the southern countries—France, Italy, and Spain—relying more on local elites a nd direct administrative channels, and the northern nations of Britain, Sweden, Norway, and Denmark s howing a tendency to rely more on associations, professional channels, and political parties (Ashford 1 982; Tarrow, 1977).

Technical roles of central government officials in IGR represent patterned actions. Fesler (1962) has tra ced the evolution of the field agent from political generalist to that of a specialist administrator. Special ists are said to have three primary roles: responsibility for overall policy and standards, coordination of programs, and control over expenditure (Webb and Wistow, 1980). What have been characterized as "tr ust relationships or trust ties" hold IGR actors together bureaucratically (Breton and Wintrobe, 1982; Du puy, 1985). These functional links are said to be nurtured by:
(1) common values and vocabulary;
(2) relative departmental autonomy at central government levels to make key intergovernmental decisio ns;
(3) trust relationships nurtured by continuous contact;
(4) distributive effects of grants that expand program activity, enhance bureaucratic careers and "lock-i n" promises of resources or other considerations; and
(5) special interest representation through associational ties of departmental officials.

Policy guidance roles, such as the idealized framework identified by Webb and Wistow (1980) in regard to British personal social services, provide useful means for understanding the type of national controls that bureaucrats often impose:

1. professional and service objectives;
1 current theories and knowledge about social problems;
2 the implications of such theories for the choice of service outputs and professional practice;
3 professional standards;
4 the reconciliation of resource scarcity with the exercise of public accountability (primarily throug h enquiries into mistakes and disasters);
5 priorities between client groups (not least because of the demographic pressure from the elderly population);
6 priorities between types of service provision and intervention;
7 the local compatibility of personal social services with health service planning (over which the D HSS has direct control, nominally at least); and
8 the compatibility with other statutory services (e.g, housing and education) and with voluntary a nd informal provision (Webb and Wistow 1980).

They believe in this case that the national Ministry of Health and Social Services must provide guidanc e relating to these concerns due to uncertainty over goals and priorities and increasing interdependenc e.

The prefectural system in illustrates processes of generalist interactive guidance. For example, commune level managerial assistance is regularly offered by national civil servants, who often serve in dual roles as paid consultants and national officials. Thoenig (1978) uses the example of the *subdivisionnaire des Ponts et Chaussées* (subprefects), who determine major public works policies and watch over municipal budgets. These state bureaucrats coordinate and integrate the actions of various communes within their area and gain in the support of local political leadership for their objectives, which is said to lead to sound management.

The French decentralist reforms are said to be a recognition of the evolution of the prefectural system from one that emphasized the right of *tutelle* (Ashford 1982), to one of the monitoring local authorities. Despite French intergovernmental reforms, which Dupuy (1985) maintains actually confirmed ongoing decentral practices of officials, the prefects' successors—*commissaires*—retain critical roles. They have been shifted from local government executives to IGR representatives of the state within networks of officials. Thus, there appears to be two interactive models of IGR administrative contact worthy of examination, one of a more functional specialist nature and one of a generalist nature.

Intergovernmental Management (IGM)

Managing affairs between governments on a daily basis is a rapidly ascendant component of IGR. Hesse (1987), for example, refers to the West German system as not only involving extensive entanglement and interdependence but operating through processes of cooperation and coordination. Agranoff's (1986) study focuses on the importance of routines as officials work at the margins of their governments, making adjustments as they attempt to make programs work. The prevalence of such behaviors has led observers to ask whether the present is not an era of intergovernmental management (IGM), an emergent phase of IGR (Wright, 1984).

IGM refers to the daily transactional or "working out of relationships" between component governmental elements in a system of governments. As a function of IGR, it emphasizes the goal achievement process, since management is a *process* by which cooperating officials direct action toward goals. Wright (1984) attributes three special qualities to IGM:

(1) a problem-solving focus, that is, "an action oriented process that allows administrators at all levels the wherewithal to do something constructive" (Mandell, 1979);

(2) a means of understanding and coping with the system as it is, including strategic perspectives that address how and why inter-jurisdictional changes occur, as well as guidance on how to cope with the system; and

(3) an emphasis on contacts and the development of communication networks.

Agranoff and Lindsay (1983) conclude that IGM involves parties developing joint solutions while recognizing the importance of, and making accommodations among, the jurisdictional-legal/political and technical questions involved. IGM is therefore depicted as a complex and involved process of joint action, searching for feasible courses of joint management activity. The significance of these managerial ac

tivities has been identified in many national contexts. In an introduction to a symposium on "Inter-organizational Policy Making" in Western nations, Hanf (1978) identifies the authors' focus on the inter-organizational characteristics of government problem-solving, involving a myriad of government levels and private agencies. Divisions of responsibilities, decision frameworks, and divergent interests lead to the need for "serving coordinated policy actions through networks of separate but interdependent organizations where the collective capabilities of a number of participants are essential for efficient problem solving, or where the activities of individual units are to be guided by more general policy considerations."

In a more focused way, Rhodes' (1985) assessment of IGR in the identifies a series of "rules of the game" that were characteristically played by units of government during the 1970s and early 1980s. The long list includes pragmatism, consensus, fairness, accommodation, territoriality, and so on. More important, he identifies a series of managerial strategies: bureaucratic use of resources, co-optation of local authorities into central decision processes, consultation with local authorities, bargaining and exchange of resources, confrontation over nonconformity, finding allies by penetrating the other government, avoidance by each unit of government pursuing its own policy, offering financial inducements, creation of professional domains, and simplification by dividing problems.

Intergovernmental Relations in Nigeria

Developments in intergovernmental relations in Nigeria have been through four phases – colonial, civilian, military and post military. Each of these phases has left its mark on both the nature and operation of intergovernmental relations in . no doubt had her boundaries delimited by the colonial administration (the British Government). Prior to this development, the pre-colonial societies in were made up of empires, a caliphate, kingdoms, chiefdoms, city states and village republics (Oyovbaire, 1983). None of these societies had a ruler or social class that had a mandate or power over all these societies because each of these societies had separate rulers.

In all federations, the need for intergovernmental relations has become even more pressing, as many issues of governance transcend a single tier of government. Unfortunately in the dynamics of 's federation, intergovernmental relations have been low. The big question is how to establish intergovernmental relations to cut out duplications and wastage, and to ensure greater efficiency in the delivery of services. The National Economic Council provided a forum for federal and state leaders to discuss the framework for new intergovernmental relations in the delivery of services. There should be greater intergovernmental relations between state and local governments for effective service delivery. The challenge is to ensure a more efficient delivery of services for poverty alleviation (Elaigwu, 2007).

As a federal state, has three tiers of government (federal, state and local) whose intergovernmental relations (which include political, financial, judicial and administrative) are mainly established by the constitution. Each tier is required to operate within its area of jurisdiction, and any action to the contrary is null and void to the extent of its inconsistency with the law. This is meant to guarantee the autonomy of e

ach tier. Intergovernmental relations may be defined as "the complex pattern of interactions, co-operati ons and inter-dependence between two or more levels of government" (Ogunna, 1996: 350).

According to Adamolekun (2002:60), intergovernmental relation "is the term commonly used to describ e the interactions between the different levels of government within the state." It can also be seen as "i mportant interactions occurring between governmental institutions of all types and in all spheres" (And erson, 1960:3). It exists in all types of state but is more pronounced, complex, controversial and content ious in federal states. The level of development in a given state tends to be determined by the quality of its intergovernmental relations.

Within the Nigerian federation, the structure charged with ensuring participation as conceptualized by S tigliz (2002) is the inter-governmental relations system (after IGR). The inter-governmental relations sys tem is for maintaining stability in interactions between levels of government through the resolution of c onflicts whenever they arise (Bamidele, 1980). Intergovernmental relations is the "workhorse of any fed eral system: it is the privileged instrument by which the job-whatever the job-gets done (Cameron, 2001: 121). The essence of IGR is to foster cooperation and regulate competition between the various tiers of government.

Historical experiments in have revealed that there exists the over-dominance of the federal government at the expense of the other levels of government regarding IGR; this is improper in an ideal federalism. ' s 1999 Constitution slits the main public sector responsibilities across various government levels. Each level of government 'is required to operate within its area of jurisdiction, and any action to the contrary i s null and void to the extent of its inconsistency with the law' (Okafor, 2010: 127). Thus, no sole govern ment could deliver radical improvements in service delivery on its own, which means that coordination and cooperation are pre-requisites. This notwithstanding, the existing mechanisms and institutions for i ntergovernmental policy coordination are very weak and need to be strengthened (Freinkman, 2007).

The issue of inter-governmental policy coordination has become increasingly important in in recent tim es. This is primarily because since 1999 the Nigerian fiscal system has gone through rapid decentraliza tion. Compared to the recent past, a much larger portion of public funds today is spent on the basis of i ndependent, non-coordinated decisions of individual state and local governments. The share of sub-nat ional budget spending in the consolidated budget doubled, increasing from 23 percent in 1999 to 46 pe rcent in 2005. Total sub-national budget expenditure in 2005 was almost four times higher in real terms than the 1999 level. Moreover, spending by local government authorities (LGAs) has been growing even faster than state government spending, which means that sub-national budget systems have become i ncreasingly decentralized (World Bank, 2007).

Nature of Intergovernmental Relation in Nigeria

To understand the nature of intergovernmental relations and why they function or are ineffective, it is i mportant to capture the constitutional and institutional environments of the Nigerian federation (DFID,

2005).

1. Constitutional Environment

Nigeria, before and after independence, has so far gone through ten constitutions, the constitutions of 1922, 1946, 1950, 1954, 1959-60, 1963, 1979, 1989, 1995 and 1999. The 1989 and 1995 were never implemented but contributed to shaping the 1999 constitution. Currently there are on-going efforts to amend the 1999 constitution. The process of constitutional mutation has left in its wake a confusing picture as to the structure of governance, nature and character of intergovernmental relations. It has impacted on the location of power to enact, amend or re-enact fundamental laws, on roles and responsibilities between different tiers of government and on power and control over resources. In terms of location of power, with the advent of military rule, the trend has been to shift power towards the centre. This centralising tendency is most apparent in the erosion of the powers and functions of the federating states (ibid.).

The 1979 Constitution introduced drastic changes in the balance of power in favour of the Federal Government in several ways4. Many matters which were previously in the concurrent list were transferred to the exclusive list; those that remained in the concurrent list were essentially within Federal Government competency; federal power was extended to matters hitherto under the exclusive competence of State Governments and the Federal Government acquired new powers in respect of the direction and management of the entire Nigerian economy, as well as the promotion and enforcement of the fundamental objectives and directive principles of the Nigerian Federation.

2. Institutional Environment

Constitutional mutations were also accompanied by changes in the policy making process and in structures for policy implementation. From reliance on formal institutions and structures for policy making at independence, policy making was gradually hijacked by individuals closely allied to military rulers. Formal structures were relegated to rubber stamping policies already decided upon. Policy making was largely an ad-hoc and non-participatory process reserved for technocrats.

Between 1967 and 1975, permanent secretaries dominated the policy making process mainly due to the inexperience of the new military rulers. Between 1975 and 1979 'special advisers' took over the policy making process. Since 1999 and the new democratic dispensation, formal institutions and structures now control policy making although 'special advisers' do have an informal role in policy making. There is now a broad consensus for a more consultative policy making process (DFID, 2005).

Despite the above recent positive developments, there is a perception among states that existing constitutional provisions constrain the functions of states and concentrate too much power on federal authorities. LGAs in turn feel constrained by states especially by the way states control LGA expenditure using the mechanism of joint State/LGA accounts. And the federal government too feels that States adopt too 'hostile' a posture towards it. It holds the view that States are more interested in resource transfers than co-ordination and collaboration in service delivery.

An added complication has been the tendency especially within the 1st and 2nd tiers of government to create new structures to implement policies rather than reform and improve upon the structures with th e constitutional mandate to implement such policies. The overall effect of the constitutional and policy environment described above has been the duplication of structures, a lack of clarity in the policy maki ng process and in roles and responsibilities of different tiers of government, institutions and structures (ibid).

Management of Intergovernmental Relations (IGR) in Nigeria

The need for managing intergovernmental relations is driven by a range of factors, including constitutio nal ambiguity, fiscal relations, public policy interdependence, investment and trade, infrastructure mana gement, environmental protection, policing and security, and the sharing of resources. Intergovernment al relations in are managed through mechanisms and institutions.

The two dimensions and the scope of intergovernmental relations:

There are two main dimensions by which intergovernmental relations takes place:

(1) Vertical: national-provincial; provincial-local; national-local.

(2) Horizontal: inter-provincial; inter-local.

1. Vertical coordination

The coordination between government levels becomes more complicated in the case of shared rather t han exclusive responsibilities. It requires a supervisory and monitoring role by central government (cont rol or *tutelle*) that has to be supported by a continuous two-way exchange of information between nati onal and sub-national levels of government. Systematic collection, analysis and reporting of informatio n is essential for central government to verify compliance with policy goals, analyse alternative outcom es and guide future decisions. The type of information needed depends on the service-delivery objectiv es in the various sectors (health, infrastructure, education, etc.).

Depending on the country context, concentrated government offices can play an important role in super vising and monitoring local government units at the regional or local level, especially when the capacity of local governments is weak; they can then provide support and guidance. An important implementati on issue related to vertical coordination is how to ensure a certain degree of monitoring of quality of pe rformance without compromising newly found local government discretion? Experience shows that too much coordination and control ends up facilitating re-centralisation.

One way to address the risk of re-centralisation is the establishment of a permanent body, such as a loc al government association, with proper representation at various levels. A local government association can address coordination issues and give sub-national governments institutional space for defending t heir interests. It can function as a coordination instrument for central government since it supports its members in the elaboration and implementation of new laws and regulations. At the central level, a min istry of local government can be charged with the implementation of decentralisation and can deal wit h issues of vertical coordination.

2. Horizontal coordination

An efficient provision of local services and management of local resources often involves coordination between local units of the same government level. Territorial cooperation and coordination is required n ot only because of economies of scale in providing services but also because certain tasks, such as m anaging natural resources (like water and forests) as well as infrastructural development, cannot be res tricted within administrative boundaries. In some cases, effective structures for cooperation have even ended up in an amalgamation of neighbouring local government units.

Territorial or spatial planning, which can be done at the national, regional and local level, relates to the geographical areas where resources are spent (for example, on infrastructural investments or regional h ospitals). It requires both inter-sectoral coordination and coordination between government units of the same level. When decentralising, it is important to assess how resources are distributed over different r egions and which government level is responsible for management and coordination. Regional coopera tion and territorial planning are important for the following:

- realising joint investments in infrastructure
- fostering regional economic development
- managing natural resources
- managing local services
- inter-sectoral coordination

Horizontal coordination also relates to the cooperation between sub-national governments (through suc h mechanisms as associations of municipalities or unions of mayors, chief executives or professional s) to represent and defend their interests vis-à-vis the central level. Local government associations func tion as a coordination instrument for central government as well, since they support their members in t he elaboration and implementation of new laws and regulations. Another function of the associations i s that they share lessons and experiences and work on capacity development by providing training and advice to their members.

Types of interaction between governments:

1) Independent policy making: governments take action without consulting others or considering their i nterests, and other jurisdictions must adjust independently.
2) Consultation: governments recognize that their actions affect others and exchange views before acti ng, but action remains independent.
3) Coordination: governments try to develop commonly acceptable policies and objectives which they will then each develop within their own jurisdiction.
4) Joint decision-making: requires that governments act together, committing themselves to particular courses of action and standards of conduct. Shared-cost programs, and matching legislation are exam ples of implementing joint decision-making.
5) Conflict resolution: by intergovernmental negotiation or by courts.

Channels of intergovernmental interaction:

1) Legislation.
2) Administration.
3) Fiscal adjustments, both vertically and horizontally. A crucial area in most multi-sphere political syst ems.
4) Information-gathering: information exchange or joint collection.

In most systems of intergovernmental relations multiple channels for intergovernmental interaction hav e proved more effective than trying to integrate them all into a single structure or process.

Forms of provision for Intergovernmental Interaction:

1) Constitutional provision: In multi-sphere regimes (a) by establishing the context for intergovernment al relations: actual powers assigned to each sphere of government and the form of legislative executive relations in the governments within each sphere; (b) by specifically setting out structures or procedures for relations between spheres of government: provision for overriding powers; requirements of consent; requirements of consultation; establishment of intergovernmental councils; establishment of advisory c ommissions; form of second chamber.
2) Statutory provision: provision for joint programs, structures or procedures following formal intergove rnmental agreements.
3) Practice and convention: generally in multi-sphere regimes whether federal or not, this is the most fre quent form of actual provision for intergovernmental relations because of its adaptability and flexibilit y.

Administrative Mechanism for Managing IGR in Nigeria

The mechanisms and structures of IGR can be categorized into *Intra-jurisdictional IGR*: arrangements t hat federalize the centre, that bring the regions into the institutions of the central government (National Assembly in Nigeria) and *Inter-jurisdictional IGR*: which incorporates two categories of interactions, rela tions between some or all of the regional units and central government; relations among some or all of the regional units themselves, in the absence of the central government.

Mechanisms for intergovernmental relations may be seen as consensual tools employed for the mutual benefit of the constituent units of the federation. However, this paper uses the term intergovernmental r elations in a broader sense, which includes all mechanisms through which governments within a federa tion are brought into relation with each other. Some of these interactions are non-consensual, but they a re nonetheless important in understanding the range of mechanisms that affect relations between polit ies within federal systems of government. It should be recognised, however, that institutions are quite pr operly regarded as a type of mechanism for effecting intergovernmental relations, so that no bright line can be drawn between the institutions of intergovernmental relations and the mechanisms that they e mploy.

2. Executive Mechanisms

The executive plays a major role in intergovernmental relations in all federations. This role is preeminen t in countries with Westminster style systems of government because of the dominance of the executiv e over the parliamentary process. Intergovernmental mechanisms involving the executive range widely i n their degree of formality—from the making of binding written agreements to informal liaison between governmental officers.

(A) Formal Cooperative Agreements

Agreements voluntarily entered into are generally mutually beneficial to the participating parties becaus e each party, acting in its own interest, can be assumed to participate only if there is advantage in doin g so. This basic principle underlies the logic of collective action by governments within a federation. Go vernments acting in concert may find solutions to problems that cannot be solved when each governm ent acts alone. One mechanism for concerted action is a formal intergovernmental agreement.

Despite the attraction of voluntary agreements, federal constitutions differ widely in the extent to which they acknowledge the importance of intergovernmental agreements in oiling the wheels of the federal machinery. At one end of the spectrum the South African Constitution (s 41) requires all spheres of gov ernment to "co-operate with one another in mutual trust and good faith". At the other end, some constitu tions contain only sparse acknowledgement of the possibility of intergovernmental cooperation or even appear to discourage it. The United States Constitution (Art 1, s 10, cl 3), for example, prohibits interstat e compacts unless they have congressional consent. The deleterious effects of this clause on intergove rnmental relations have been avoided only by generous judicial interpretation.

Where intergovernmental agreements are acknowledged in constitutional law and practice, they are fre quently known by different names, serve different purposes, and have differing status. Intergovernment al agreements pass under the name of treaties, compacts, agreements, arrangements, and understandi ngs, as well as other terms.

They also serve a wide variety of purposes. Consider, for example, the differences between the followin g types of agreements:

- A commercial contract between two governments to lease premises or purchase goods;
- A written undertaking by the central government to provide resources to a regional government for an i nfrastructure project;
- An intergovernmental agreement in which the parties agree to adopt a particular policy that may be im plemented administratively and without the need for legislation;
- An agreement that the parties will use their best endeavours to ensure that their respective legislatures adopt a law, whose terms have been agreed in detail by the parties.

Written undertakings between governments within a federation undoubtedly have moral and political fo rce, but their legal effect may be uncertain. Different types of agreement may have different status in te rms of their enforceability. The first type of agreement—the commercial contract—will often be enforcea ble in the courts because such agreements are generally governed by the law of the land, in the same w

ay as commercial contracts between private parties. However, special procedures or jurisdictional arran gements may apply to litigation between governments.

The second type of agreement, by contrast, might be seen by the courts as purely political in nature and hence not suitable for judicial resolution. The "political questions" doctrine, which is applied in a numb er of federations with a well-developed separation of powers (US, Australia), permits judicial abstention where a matter is more appropriately resolved by another branch of government. In such cases, the valu e of an intergovernmental agreement may rest solely on its moral and political force.

In rare cases, agreements between governments within a federation might even be governed by the rule s of public international law rather than domestic law. Two preconditions for this are that the constituti on recognises the constituent regions as possessing the capacity to enter into treaties of the relevant ki nd (as in Russia), and that this capacity is also recognised by other states in the international communi ty. Even then, it is debatable whether international law would accept that an arrangement internal to the nation state is capable of being governed by rules of public international law.

The parties to the agreement may themselves be able to affect its legal status and hence its enforceabi lity. A statement in the agreement that it is intended to create binding legal obligations may be significa nt, as may the name given to the arrangement. In some federations, use of the term "memorandum of u nderstanding" is an accepted way of signifying that the agreement is not intended to create legal obliga tions. Uncertainties surrounding this issue suggest that status of intergovernmental agreements may re quire further consideration by federations. Arguably, however, the greatest significance of formal interg overnmental agreements lies not in their legal enforceability but in the political pressures for cooperatio n and mutual assistance, which they bring to bear on the parties to the federal compact.

(B) Informal Cooperative Relations

The use of formal intergovernmental agreements is probably less significant than the informal relation s that occur between departments of the central and regional executives. The complexity of modern go vernance often requires coordinated strategies between levels of government in order to meet policy go als effectively. Much of this coordination will occur within functional portfolios (e.g. health, environmen t, finance etc.). At the highest level, this coordination may take place through meetings of ministers of State from each central and regional government. At an intermediate level there may be regular intergov ernmental meetings of departmental officers within a portfolio. At the lowest level there may be little m ore than informal telephone calls between civil servants in different spheres of government in relation t o some current problem. Clearly, the nature of the arrangements between government bureaucracies de pends on factors specific to each federation, including historical, institutional, and social factors. Issue s that arise in all such arrangements include their transparency and effectiveness in meeting policy obj ectives.

(C) Federal Fiscal Relations

The coordination and adjustment of fiscal relations in federations give rise to several mechanisms for i

ntergovernmental relations. These deserve special mention because of the tendency for fiscal issues to dominate intergovernmental relations. These mechanisms include arrangements for coordinating the p ublic borrowings of central and regional authorities, such as the Loan Council established under the Au stralian Constitution (s 105A).
They also include mechanisms for distributing revenues equitably amongst constituent units of the fed eration. This is necessary because federations often have a marked degree of "vertical fiscal imbalanc e", which is the disparity in the ability of central and regional governments to raise revenue in comparis on with their own expenditure needs. Typically, the centre has revenue-raising capacity that exceeds its expenditure needs, while the converse is true for the regions. There may also be a degree of "horizontal fiscal imbalance", which is the disparity between regional governments in their revenue raising capacity (e.g. the ability of a mineral-rich region to extract mining royalties), or in their cost structures (e.g. the di sproportionate cost of transport infrastructure in a large and sparsely populated region).

Generally speaking, federations have used four mechanisms to make fiscal adjustments to compensat e for these problems, and each has different implications for intergovernmental relations.
• Expenditure powers can be transferred, e.g. from regions to the centre to give the centre a level of expe nditure that better matches its revenue raising capacity.
• Taxation powers can be transferred, e.g. from the centre to the regions to give the regions a revenue rai sing capacity that better matches their expenditures.
• Inter-governmental transfers can be made, typically from the centre to the regions, in a way that may a ddress both vertical and horizontal fiscal imbalance. Transfers may also be made by more advantaged regions to less advantaged regions to correct horizontal fiscal imbalance (as in).
• A system of institutionalised revenue sharing can be adopted, whereby the regions receive a fixed pro portion of centrally collected taxes, in accordance with a pre-agreed formula (as in).

The adjustment of fiscal relations between governments within a federation has necessitated the estab lishment of appropriate institutions.

(D) Competitive Relations
An alternative way in which executives within a federation may be brought into relation with each other is through competition rather than cooperation, as the executives of regional governments vie with eac h other for sources of revenue and employment opportunities for their residents. Examples of competiti ve behaviour include offering subsidies to encourage businesses to locate within the region, introducin g lower rates of taxation, or providing infrastructure to industry. A useful illustration occurred in Australi a in the 1970s when the state of abolished death duties, which existed in all states at that time. The m ovement of wealthy retirees to Queensland soon led to the abolition of death duties in the remaining st ates as they tried to prevent the erosion of their tax base through loss of population.

Issues that arise in respect of competitive intergovernmental relations include the following:
• Does competition result in a "race to the bottom", with each region bargaining away benefits?
• Does competitive federalism produce economically efficient solutions by promoting competition betw

een the laws, practices, and procedures of the jurisdictions?
• Are the preconditions for a competitive market between governments (such as absence of externalities, perfect information etc.) satisfied?
• Can competition between regions secure policies that are harmonised around a stable equilibrium?

Legislative Mechanisms

Legislatures play an important role in giving the force of law to policies initiated by the executive. Intergovernmental arrangements hammered out by central and regional executives often require legislatures of the constituent regions to act in concert if uniformity, harmonisation or reciprocity is to be achieved in the manner envisaged by the executives. Inevitably, federations with a relatively large number of constituent regions (e.g. United States, Nigeria, Switzerland) will have more difficulty co-ordinating legislative action than federations with a small number of component units. Size may therefore have a bearing on the type of mechanism invoked. There are many different ways in which legislative schemes may give effect to intergovernmental arrangements. A selection of them follows.

(A) Reciprocal Schemes

Reciprocity is a well-tried but relatively low-level form of harmonisation within federal systems. It permits variations in the laws of the participating jurisdictions but enables one jurisdiction to recognize, on a reciprocal basis, a status conferred by another jurisdiction. Reciprocity is used as a basis for co-ordinated legislative action in a variety of fields. A particularly good example is the scheme for the mutual recognition of goods and occupational qualifications adopted in the European Union in the 1980s, and subsequently in federations such as Australia. One of the objects of the scheme is to ensure that goods meeting prescribed product standards in their state of origin are entitled to be sold in all other states in the federation. This process is not concerned with the definition of uniform standards, but with the recognition of possibly divergent standards. In practice, however, mutual recognition may generate pressure to adopt uniform national standards so that the lowest common denominator does not prevail.

(B) Complementary Schemes

Complementary schemes are used where no jurisdiction within the federation can achieve a desired objective by itself, so that complementary laws must be enacted cooperatively by several jurisdictions if the legislative goal is to be reached. These problems arise because all federations divide legislative powers between central and regional governments in ways that limit the powers of one or more of the constituent polities. A typical scenario prompting such a scheme is where the central legislature is unable to regulate a subject matter completely because that subject matter travels beyond the limited powers conferred on it by the constitution. Each regional legislature may also be unable to implement comprehensive regulation of a particular subject matter, not because it lacks power over that subject matter but because the reach of its laws is territorially confined. One solution to the limitations imposed by territoriality and subject matter is complementary legislation. In effect, each jurisdiction enacts laws to the extent of its constitutional capacity, and thus adds an additional piece to the "jigsaw puzzle"—the picture is completed by the participation of all units of the federation.

A variation on the theme of complementarity occurs where the central legislature does have the constitutional capacity to enact appropriate legislation, but nonetheless provides opportunities for regional participation on stated terms. One example is where central legislation governs a particular field until such time as a region enacts legislation that is considered by central authorities to be adequate to meet minimum standards. If regional legislation is considered adequate, the central legislation "rolls back" to allow regional laws a field of operation.

(C) Mirror Legislation

Under "mirror" legislation each executive agrees to the terms of a detailed draft statute, which is then enacted by separate legislation in each participating jurisdiction within the federation. This mechanism produces virtual uniformity at the outset, but this often erodes over time as local legislators exercise their independent political judgment and make piecemeal changes to it.

A variation of this method occurs where the terms of the proposed uniform law are settled, not by the executives themselves, but by an independent body comprised of qualified representatives from each region. This occurs in the United States (National Conference of Commissioners on Uniform State Laws) and Canada (Uniform Law Conference), but the lack of direct executive involvement may result in poor adoption of the uniform law, or impromptu alterations to it during enactment.

(D) Application of Laws Method

To overcome the difficulty experienced in keeping mirror legislation uniform over time, an alternative mechanism is sometimes used. This method involves the enactment of a law in one jurisdiction (the host jurisdiction), and the application of that law in other participating jurisdictions. The host legislation contains all the substantive provisions that are to be enacted, and its precise terms are agreed prior to enactment by the host. Every other participating jurisdiction within the federation then passes a statute giving the host legislation the force of law within that jurisdiction. This has the advantage that later amendments to the scheme require legislative change in the host jurisdiction alone—the application provisions of the other regions simply pick up any changes so made.

(E) Agreed Policies

In some cases, central and regional executives do not agree to specific laws but to detailed policies, which must then be implemented by appropriate legislation in each region's legislature. This method of intergovernmental cooperation is less prescriptive than some other methods of cooperative harmonisation, since each jurisdiction maintains a "margin of appreciation" in selecting the precise manner in which the agreed policies are implemented.

(F) Reference and Delegation of Power

Some federal constitutions provide other mechanisms by which central and regional governments may cooperate to solve problems arising from limitations on the legislative power of either level of government. The Australian Constitution (s 51(37)), for example, enables states to refer matters to the federal P

arliament, and for the federal Parliament to then make laws on the referred topic for the benefit of the r eferring state. The purpose of the section is to facilitate the use of intergovernmental arrangements to overcome rigidities in the constitutional allocation of powers between the centre and the regions. Its oc casional use to solve otherwise intractable problems signifies the importance of intergovernmental rela tions in providing constitutional flexibility. By contrast, a similar provision in the Canadian Constitution (s 94) has been described as a "dead letter".

Analogously to the reference power, some constitutions contemplate a delegation of power from the ce ntre to the regions. The South African Constitution allows the National Assembly to assign any of its le gislative powers to any legislative body in another sphere of government (s 44); and also allows a provi ncial legislature to assign any of its legislative powers to a Municipal Council in that province (s 104).

4. Judicial Mechanisms

The significance of the executive and the legislature in conducting intergovernmental relations often ov ershadows the role that courts play in shaping intergovernmental relations within federal systems of go vernment. The importance of the courts may be seen in two ways. The first is the way in which the cour ts set out a legal framework within which the intergovernmental relations of other branches of governm ent operate. The second is the way in which central and regional courts relate to each other, considered as institutions of government in their own right.

(A) Institutional Design

The judiciary is an area in which it is often difficult to distinguish between attributes of the institution a nd the mechanisms that it employs. It is appropriate, therefore, to say a little about the institutional asp ects of courts in federations. Not surprisingly, there is substantial diversity in the approaches taken to t he following issues:

- whether there should be a special constitutional court capable of pronouncing on the constit utional validity of government action (South Africa s 167; Germany s 93, Austria), or whethe r this function should be decentralised and left to the country's general courts (USA, Canada, Australia, India).
- whether central and regional governments should establish separate and parallel systems of courts (USA, Brazil, Mexico), or whether disputes can be satisfactorily resolved within a syste m of courts that is (apart from the highest court) wholly central (South Africa, Venezuela, Ma laysia) or wholly regional (Germany, Switzerland).
- whether the constitution or legislation should identify a separate class of legal disputes (by r eason of subject matter or the parties to the action) that are distinct from other types of matt ers. In the USA and Australia, for example, the constitution distinguishes matters of federal ju risdiction from residual (state) matters.
- whether the class of federal matters (if separately identified) should be determined exclusivel y by federal courts, or whether federal and state matters should be administered concurrently by state and federal courts.

- whether appeals to the highest court should be confined to federal questions (USA) or range over the entire field of general law (Australia, Canada).

(B) Judicial role in regulating other branches of government

The judicial branch of government plays a critical role in establishing the framework for the conduct of intergovernmental relations by the executive and the legislature. This importance stems from the circumstances that

(a) all federations embody a division of powers between central and regional governments and

(b) neither level of government should be the sole arbiter of that division.)

The courts are usually called on to superintend the division of power and hence to determine the conditions under which the other branches conduct intergovernmental relations. The attraction of the courts in this respect arises from the public perception of them as independent and impartial arbiters. Yet the nature of the judicial function sets limits to the way in which the courts can influence the development of intergovernmental relations within a federation. That influence is generally confined to setting the structural parameters within which the constituent governments of a federation are able to relate to each other. The influence may be negative—by limiting the power of government, or positive—by facilitating intergovernmental arrangements that may not find a sure footing in the written constitution. An example of each of these forces is given below.

Judicial Review

Many of the drafters of the United States Constitution regarded the judiciary as guardians of the constitution. A key element of their function was to review legislative and executive action for compliance with the constitution and, if found wanting, to invalidate that action. This principle of judicial review is not unique to federal systems – it is now common in unitary countries. Nor is it universally accepted amongst federal states – for example in Switzerland the Federal Tribunal has power to invalidate unconstitutional legislation of the Cantons, but not that of the central legislature. Nonetheless, amongst federations, acceptance of the principle is widespread and has a significant bearing on the framework within which intergovernmental relations are conducted. For example, judicial invalidation of central legislation, or even the threat of such invalidation, may provide the occasion for cooperative arrangements between regional governments for the purpose of establishing regulation prohibited by the constitution to the central legislature.

Principles of Interpretation

This is one of the most important mechanisms by which the courts may affect the conduct of intergovernmental relations by other branches of government. Many older federal constitutions are silent on key aspects of intergovernmental relations and provide an inadequate framework for the conduct of those relations as we approach the 21st Century. The courts have thus had a significant effect on the success (or failure) of intergovernmental relations in overcoming constitutional rigidities. The courts are faced with a basic policy choice between constitutional interpretations that promote co-operative arrangements between governments, and those that do not. For example, under the United States Constitution (Art

1, s 10, cl 3), states are prohibited from entering into compacts with other States without congressional consent. Yet the courts have interpreted this provision in a way that facilitates intergovernmental coope ration – only state compacts that encroach on the free exercise of federal power are caught by the pros cription. The same policy choice is available in interpreting legislation enacted pursuant to a cooperativ e scheme. It is entirely sensible that courts throughout a federation should interpret national scheme le gislation uniformly by use of judicial comity and deference to the decisions of courts of coordinate aut hority.

(C) Relations between central and regional judiciaries

If one accepts the judiciary as a branch of government in its own right, there is also the possibility of int ergovernmental relations between the judiciaries at the central and regional levels, at least in those fede rations with dual court systems. Space does not permit a comprehensive examination of this issue, but key issues include:

- The extent to which courts of one level are bound by the decisions of courts of another level.
- The extent to which courts of one level respect the decisions of courts of another level as a matter of judicial comity.
- Whether the courts of one level are able to grant remedies against judges of another level.
- The comparative status of judges in each system, as determined by their remuneration, entitl ements, and the type of matters they adjudicate.

In some federal administration systems, a number of administrative mechanisms have been devised fo r managing inter-governmental Relation. In , for example, the emphasis is on the use of periodic confer ences of political leaders and appointed officials. This approach is also a common feature of intergov ernmental relations in a few other Federal systems such as Australia, Nigeria and . In each of these cou ntries, the two major subjects for discussion are Finance and Economic policy.

Inter-governmental administrative relations are constitutional machineries established in for the maint enance of inter-governmental relations. Some of these institutions include the National Economic Cou ncil, the National Council of States, the Liaison Offices, the State Local Government staff etc. There ha ve also been series of conferences organized for leaders and officials of the various levels of governme nt. Virtually, every aspect of government activities has been covered by either, Federal-State or inter-Sta te conferences or combination of the two. Conferences constitute the major tool for managing intergov ernmental relations. Hence, Okoli and Onah observed that between 1989 and 1991, there were over two hundred conferences and meetings held at both the Federal, State and Inter-State levels. Some of these conferences include:

i. The Bi-annual conference of Commissioners for Local Governments
ii. The National conference of the Ministers and Commissioners for Finance.
iii. Meetings of Secretaries to Governments of the Federation.
iv. The National Conference of Ministers and Commissioners
v. Meeting of Accountants-General of the Federation

vi. Meetings of Civil Service Commissioners of States

An interesting question is the extent to which officials at the Federal, State and Local levels engage in h ierarchical (meaning superior-subordinate) and bargaining – negotiating patterns of relationship. The dominant pattern is like to change from time to time and the crucial factors at any given time will most certainly include; the relative position of each level of government in the intergovernmental Relations sy stem, the behavioural pattern of the political actors and the quality of staff available at each level of go vernment (Ralph 2004).

Institutions for Managing Intergovernmental Relations in Nigeria

There are institutions and processes for managing IGR in , and they include constitutional institutions, statutory institutions and Informal/adhoc institutions. These have changed over times, depending on t he Constitution and the system of government in operation.

1. Constitutional Institutions

These are constitutionally provided executive institutions for the management of Intergovernmental Rel ations in , and they include:

a. The National Assembly

Section 4(1) of the 1979, 1989 and 1999 constitutions state clearly that 'there shall be a Nationa l Assembly for the Federation which shall consist of a Senate and a House of Representatives. Representing the whole Federation on the basis of population in the (House of Representatives – HOR) and on the basis of equality of states (in the Senate), the National Assembly in an open legislati ve institution of IGR. It is powers of legislation over appropriation bills control over public funds, contingency fund and investigation all makes the National Assembly an important inter-governmental i nstitution in the constitutions.

b. The Supreme Court

The Supreme Court has the final power of arbitration in civil, criminal and constitutional matters. In Nigeria's Second Republic, State Governments took the Federal Government to court over revenu e sharing formula and the Agricultural Development Basin Authorities. Individuals and Corporate groups also went to the court to seek redress.

c. The Council of States.

This is essentially one of the advisory executive bodies contained in the constitutions of 1979, 1 989 and 1999. Its functions include advising the President with regard to the conduct of national c ensus, prerogatives of mercy, award of national honour, the Independent Electoral Commission, t he National Judicial Commission, the National Population Commission and on public order. The mem bership of this body also reflects its intergovernmental nature.

d. The Federal Character Commission.

This is another constitutionally guaranteed executive Intergovernmental Relations agency. The f unctions of this agency include working out equitable formula for the distribution of all cadres of p

osts in the Federal and State public services, promoting, monitoring and enforcing compliance of pro portional sharing of public offices and taking measures to enforce such compliance. Given variou s complaints about injustices/unfairness in the distribution of public services positions among compo nents units of the Federation, the importance of this commission cannot be over emphasized. This a gency is expected to carryout the constitutional provisions in Section 14(3-4) of 1979, 15(3-4) of 1989 and 14(3-4) of 1999 constitutions which states that the composition of the government of the F ederation or any of its agencies and the conduct of its affairs shall be carried out in such manner as to reflect the Federal Character and the need to promote national unity.

e. The Independent National Electoral Commission (INEC).

INEC has the functions of organizing, undertaking and supervising all elections. There is a provi sion for State Electoral Commission in each state of the Federation. It also has the function of registering political parties, monitoring the organization and operation of political parties and annual ly examining and auditing of the funds and accounts of political parties.

f. The National Economic Council (NEC)

This council has the powers to advise the President concerning economic affairs of the Federat ion and in particular on measures necessary for the coordination of the economic planning efforts o r economic programmes of the various governments of the Federation.

g. The National Judicial Council

It has the power to recommend appointments to the bench at Federal and State levels and FCT. I t can also recommend the removal from office of the judicial officers and exercise disciplinary control over members of the judiciary.

h. The National Population Commission

It has the functions of undertaking periodic enumeration of population through sample surveys, census etc, continues registration of births, deaths, advising the President on population matters and providing data/information on population for National Planning and development.

i. The Revenue Mobilization Allocation and Fiscal Commission

It is responsible for monitoring accruals to and disbursement of revenue from the Federation acc ount. Periodically reviewing the revenue allocation formula and principles in operation to ensure confo rmity with changing reality advising federal and state government on fiscal efficiency and methods by which their revenue can be increased and determining the remuneration of the President and Vice Presi dent.

All these executive IGR institutions are constitutional. The long period of military rule "froze" the activiti es of some of these agencies but they are again operational. Ironically, many of these agencies were cr eated by various military administration but they are now operating fully to carry out their manda tes.

2. Statutory Agencies

These are inter-governmental institutions that are backed by law and most of them were established under military rule. This is evidence that even under the military's hierarchical structure of authority, it was still necessary to establish institutions of IGR in order to resolve conflicts and or deliver services. Among such statutory IGR institutions are:

i. The Directorate of Foods, Road and Rural Infrastructure (DIFRRI)

It was established to open up rural areas, provide essential services such as water supply through boreholes, rural electric power supply and roads. Essentially, this programme was aimed at making the rural areas more attractive and thereby reducing the rural-urban drift. Rural development is really the function of state and local governments. Since the Federal government's intervention as these areas was deemed necessary, DIFRRI was established as IGR institutions. State governments were to contribute 25% of the total fund for DIFRRI projects while the rest came from the Federal Government. While DIFRRI headquarters managed the funds, state governments and State DIFRRI offices (under State Governments) execute these projects.

Between 1986–1989, DIFRRI has opened up 30,000 km untarred road to rural communities, supplied portable water to 250 communities and had reached advanced stages of installation of rural electrification in 227 Communities. This agency exhibited successful performance for about five years, after which it become bureaucratized and suffered from corruption on the part of the operators at state and local levels.

ii. The National Council on Inter-governmental Relations (NCIR)

It was established in July 1992 to closely monitor the operation of the Federal System, giving continuing attention to inter-governmental relations in the Nigerian Federal System, study conduct research and maintain data, recommend solution s to problems of inter-governmental relations and necessary forms of improvement, play mandatory roles in resolving conflicts and establish contacts with other organizations with similar objectives. A major problem of NCIR was bureaucratic suffocation, which even starved it of funds. In addition, NCIR had no independent source of funds that was necessary if it was to mediate among tiers of government and to remain neutral.

Some other institutions of IGR under Statutory institutions includes: The Boundary Commission, The National Directorate of Employment (NDE), The National Planning Commission and the National Primary Education Commission. The Adhoc or Informal bodies and Agencies are useful in bringing together Federal, State and Local Officials in a particular policy area. They also help to smoothen intergovernmental relations and encourage co-operation among component units of the Federation. The various National Councils in Education, Agriculture, Health, Industry, Information, Tourism and Finance are usually meetings among Ministers at Federal and State levels to bring State and Federal political executives together to harmonized policies in the interest of the Federation.

All the above institutions of IGR are important in managing conflict and responding to changing circum

stances in the Nigerian Federation. While IGR institutions are useful, they also carry with them the bag gage of their own problem, which need careful attention. Some of the tension, which arise in the Nigeri an Federal, emanate from the overlap of functions among tiers of government. They are derivable from the kind of pulls, the tension arising from attempt at delicately striking a balance between centripetal a nd centrifugal forces. These become very evident in the relations between Federal and State governme nts, State and Local Governments and even in the relations among state governments (Elaigwu, 2005).

Intergovernmental relation Institutions and Processes

There is a wide range of IGR institutions and processes, most of which are extra-constitutional. Most be long to the executive branch of government.

A. The Legislature

Almost all federations have bicameral parliaments, and most have some form of regionally influenced r epresentation in their second chamber or upper house. However, the only chamber that can really be de picted as an IGR institution is the German Bundesrat whose members directly represent the Lander¨ gov ernments who therefore have a direct say in federal government policy and law making. Watts (2008). A lthough they provide equal representation for each state regardless of population in recognition of the f ederal principle, upper houses such as the US and Australian Senates have directly elected members wh o primarily represent party rather than state interests. Countries use a range of legislative techniques to facilitate IGR coordination or give effect to national laws. In Australia, the constitution allows for states to refer powers to the Commonwealth, although this has been done only sparingly. Phillimore (2010). P arliaments occasionally play a formal role in monitoring the executive in particular areas of IGR, such a s foreign treaties which place obligations on the sub-national governments. But generally the legislature is a junior player compared to the executive.

B. The Executive

In parliamentary systems in particular, 'executive federalism' dominates, with most IGR taking place bet ween the executives of the respective governments, including both political office bearers and public se rvants. Interaction generally involves a range of standing and ad hoc councils and committees, as well as ongoing discussions between officials. These executive mechanisms vary in their level of formality, openness and effectiveness, and indeed have been the subject of criticism for allegedly undermining p ublic accountability and democratic control of government Poirier and Saunders (2010).

Many countries have a peak intergovernmental body at which heads of government meet regularly to di scuss common issues and propose joint actions. In Australia, for example, the peak IGR body is the Co uncil of Australian Governments (COAG), comprising all first ministers (the prime minister, premiers of all six states, the chief ministers of the two territories) and the head of the national association of local governments. Yet COAG has no formal status in the constitution, in legislation or even in a formal inter governmental agreement. It is in fundamental respects a meeting of government leaders, serviced by a Commonwealth secretariat Phillimore (2010). Reflecting the Commonwealth's financial dominance, the

prime minister calls the meetings, sets the agenda and prioritizes policy issues.

Often connected to the peak IGR body are meetings of ministers responsible for particular policy areas, which are usually supported by officials' meetings. However, these bodies have been subject to criticis m as they generally work on consensus principles, and therefore it is quite possible for one or more gov ernments to 'hold out' and exercise effective veto powers. This can lead to inertia or lowest common de nominator solutions Painter (2001). In some countries, horizontal IGR bodies have been established to enable constituent units to work with each other without the participation of the federal government. In Canada, the provincial premiers formed the Council of the Federation in 2003 and Australia followed su it with the Council for the Australian Federation in 2007. The efficacy of these bodies as either lobbying or governing bodies is unclear Tiernan (2008).

C. Intergovernmental agreements (IGA)

An important method of coordinating IGR in all countries occurs through formal agreements between g overnments. In some countries these are legislated, but in most they are concluded through executive a greement alone although they may form the basis subsequently for legislation and the establishment o f funding programs or new agencies. Agreements typically assign roles and responsibilities to the signa tory governments; detail any financial provisions and establish reporting requirements. Many arise fro m the distribution of Commonwealth funds to the states to deliver services. Such agreements can be m ore or less detailed in terms of the obligations they place on the signatories. Their legal status varies, a nd dispute resolution mechanisms are usually not detailed to any great extent.

D. Independent and joint agencies

A common IGR mechanism is to establish a joint or independent agency to deal with a specific public p olicy issue. Poirier and Saunders (2010). These often arise from an IGA and may be further supported b y legislation. A common effect of establishing these executive bodies is to de-politicize an issue after in itial negotiations and discussions have taken place and a resolution reached.

E. Public service

The public service is crucial to the conduct of IGR in all countries. It is the 'engine room' where detailed work is done, both through formal meetings of officials as well as through personal relations and infor mal interactions. Often, and in keeping with the diplomacy analogy concerning IGR, it is the job of the p ublic service to maintain relations and dialogue with other governments even during times of political t ensions and stand offs Poirier and Saunders (2010). However, it cannot be assumed that the public ser vice of each jurisdiction is necessarily unified. For many years in Australia, for example, 'line agencies' (responsible for most of the spending and service delivery functions and often reliant to an important d egree on funds from the Commonwealth government) differed markedly from central agencies (premier s and treasury departments) in how they approached IGR. Painter (2001), Harwood and Phillimore 201 2).

Line agencies traditionally had a more pragmatic and cooperative relationship with their Commonwealt

h government counterparts, who were a key source of funds. At the same time, the pace of change and reform in policy and administration was often quite slow. Over the past 25 years, however, central agen cies have taken a more active role in IGR and asserted political and policy control over line agencies to ensure that government priorities are adhered to, including in IGR. This is often accompanied by an incr ease in resources, including dedicated IGR units or sections collocated with their cabinet or policy unit.

Nor should it be assumed that all governments are equally capable or interested in IGR. While national governments normally have access to more financial and human resources, even they can find it diffic ult to cover the wide array of skills and competences involved in IGR properly Menzies (2011,) Harwood and Phillimore (2012). This is even more the case for constituent units, for whom IGR can often be see n as a nuisance or intrusion into their regular activities and a burden on their administrative resources.

F. Political parties

Political parties can have a large influence on IGR. If parties are very centralized and hold power at both national and sub-national level, then national leaders may overwhelm and dominate regional or state g overnments despite what the formal division of powers may say. Watts (2008). This characterizes the s ituation in South Africa and Malaysia, for example, and is likely to be the case in the transition economi es of Asia. In Australia, the major parties are structured federally and state branches and governments r etain substantial importance and independence, although 'federal intervention' by the national party or ganization into dysfunctional state branches does occur from time to time. Collectively agreed federalis m reform and policy initiatives have occurred more readily on the relatively rare occasions when one pa rty holds power at the federal level and in most jurisdictions – as it did in Australia in the early 1990s a nd most recently in 2008–09 Fenna and Anderson (2012). However, there are also numerous examples of conflict between Commonwealth and state governments having political leaders from the same part y.

G. Interest groups

Interest groups can both reflect and influence the form of IGR in a country. In Australia, for example, bu siness groups and trade unions used to be state-based but have steadily become more national in orga nization, focus and policy prescriptions, as the federal government has taken on more responsibility for economic, competition, regulation and industry policy. Key professional bodies (lawyers, doctors, other health professions) were traditionally subject to state legislation, and have been slower to agree to nati onal regulation, with smaller jurisdictions (supported by their state governments) often holding out agai nst moves to 'go national'

Policy Making Intergovernmental Structures and Processes at the Federal Level in Nigeria

A number of structures are charged with the responsibility of formulating and implementing policies on service delivery among the three tiers of government. Some examples of intergovernmental structures a t the federal level in the Nigerian state according to DFID (2005) include the:

1. Joint Consultative Committee on Education

The membership of this committee cuts across federal ministry of education, relevant federal ministries, all federal parastatals on education, relevant federal parastatals, education corps of the Armed Forces and the Police Force, State Ministries of Education, State Primary Education Boards, international development agencies, civil society, Senate committee on education and House committee on education. The federal ministry of education is represented by all Directors and Deputy Directors of Education. All Directors of Education and chairmen of State Primary Education Boards from each of the State Ministry of Education are members of the committee.

One of the objectives of the JCCE is to offer professional advice to all governments of the federation through the National Council on Education in order to have uniform policies and practice on education. The JCCE operates through its reference committees and plenary Sessions. There are seven reference committees covering primary education, secondary education, adult and non-formal education, teacher education, special education, technology and science education and educational planning. The reference committees provide avenues for in-depth study and discussions on all memoranda and reports before they are presented for further deliberations at the plenary sessions of the JCCE. Each of the reference committee is expected to meet for two days every year on a rotational basis at State Capitals. At the JCCE plenary sessions, members take decisions on reports and recommendations presented by the Reference Committees and make submissions to the National Council on Education for its ratification. JCCE plenary sessions take place twice in a year in any of the State capitals.

2. National Council on Education

The highest policy making body on education is the National Council on Education (NCE). The first session of the NCE is a two-day meeting with all the Permanent Secretaries of Federal and State Ministries of Education as well as Heads of parastatals and Directors of Federal and State Ministries of Education in attendance. The second session is a ministerial meeting presided over by the Honourable Minister of Education. At the first session of the NCE recommendations from the last JCCE plenary meeting are discussed and decisions taken are passed on to the Ministerial session of the NCE. The membership of the ministerial session is comprised of the Honourable Minister of Education; Honourable Minister of State for Education; Permanent Secretary, Federal Ministry of Education; all the Honourable Commissioners of Education of the 36 states and the Permanent Secretaries of State Ministries of Education.

The National Council on Education (NCE) in particular comes across as operating reasonably comprehensive structures and processes. There is a Joint Consultative Committee on Education (JCCE) that supports the NCE. The processes used allow for negotiated decision-making and diversity between states which creates an appropriate environment for policies to be implemented. The findings on the education sector point to the role that mutually agreed standards play in facilitating monitoring and evaluation and co-ordination. However, there are still problems with monitoring and enforcing policies as overlaps between state and federal levels still remain.

3. National Council on Health

In the health sector, the National Council on Health (NCH) sets the policy framework within which differ ent states develop their specific policies. And the NCH has been reasonably successful in creating own ership of health policies. Membership of the National Council on Health (NCH) is drawn from the federa l and state tiers of government (FRN, 2004). It is comprised of the Minister of Health, State commission ers for Health, Permanent Secretary, Federal Ministry of Health, representatives of relevant federal minis tries and . The mandate of the NCH is to advise the Federal Government, through the Minister, on the d evelopment implementation and administration of the National Health Policy.

The NCH meets at least twice in a year and is advised by the Technical Committee. The National Counc il on Health is working on amendments to the national policy. It is expected that this will remove most o verlaps and result in devolution of more delivery responsibilities from federal to lower levels of governm ent. In general the national council is viewed positively from the lower levels mainly because states beli eve their views do help shape policy. Although the National Council has been relatively successful in cr eating ownership of policies and tailoring these to state needs, problems remain. For example, some st ate governments expressed dissatisfaction with the provisions of the National Health Insurance Schem e and with the way it was devised. And more generally there is something of a disconnect between poli cy formulation and implementation. The national council seems to have little capacity to ensure that p olices developed are adhered to by any of the tiers of government.

4. National Water Council

The National Council on Water Resources came into existence in 1981. Its mandate is to formulate poli cy on water resources for the country. Members of the council include the Minister of Water Resources and Commissioners for Water Resources in the 36 States of the Federation and the federal . The counc il meets at least once in a year for deliberations on the memoranda presented by members of the Natio nal Technical Committee on Water Resources.

A National Council on Water exists and comprises the Minister of Water Resources and Commissioners for Water Resources in the 36 States of the Federation and the federal . The council is currently develo ping a national policy that should clarify roles and help remove overlaps in responsibilities for water del ivery. The council meets at least once in a year for deliberations on the memoranda presented by mem bers of the National Technical Committee on Water Resources. In some of the states visited good relati ons exist between states and LGAs in water provisioning. And co-ordination and co-operation appears t o be even better when donors support work in the sector. Important difficulties however remain in state-federal relations. States complain about the federal level implementing projects such as boreholes with out consulting state officials (DFID, 2005).

All the Permanent Secretaries from the State Ministries of Water Resources are members of the Technic al Committee. Others include Directors of River Basin and Rural Development Authority, PHCN, Meteorol ogical Services, States Water Board, Federal Ministries and representatives of Universities. States are ex pected to present progress report on Water Resources activities in areas related to water supply, irrigatio n and water shed management at the meeting of the Technical Committee on Water Resources. States

can also present memoranda on policy action that aims at addressing problems relating to Water Resources Management in the country.

5. National Council on Works

There is also a National Council on Works which develops policy guidelines for road construction and meets once a year to consider memoranda submitted by the Technical Committee on Works. At the level of road construction and maintenance, there is a rather mixed picture of the state of intergovernmental relations. The issue of federal government regularly reimbursing states for maintaining federal roads appears to be the crux of the problem. Better co-ordination and cooperation in road planning, construction and maintenance is the key to harnessing the potential a good road network has for unleashing socio-economic activity.

The members of the National Council of Works include the Minister of Works, Federal Road Safety Commissioner, and Commissioners for Works, Transport and Surveys from all the States of the Federation and Federal Capital Territory (FCT) . The council meets at least once in a year for deliberations on the memoranda presented by members of the Technical Committee on Works. Permanent Secretaries and Directors from all the State Ministries of Works as well as representatives of Nigerian Society of Engineers and Council of Registered Engineers of Nigeria constitute the membership of the Technical Committee on Works.

6. Bi-Annual Conference of Key Functionaries responsibilities for Local Government Affairs

Local Government Affairs is now under the Ministry of Intergovernmental Affairs (MoIGA), Youth Development and Special Duties (MoIGA). MoIGA is charged with the responsibility to encourage coordination and collaboration in areas of common interest amongst the three tiers of government, in order to ensure efficient and effective service delivery. Within that context, MoIGA facilitates the holding of the biannual conference. The objective of the conference is to discuss issues of capacity building, revenue generation, LG digest documentation, financial memoranda and scheme of service at the local government level. It also serves as a forum through which key functionaries in local government administration meet at federal level to share ideas and formulate policy. These key functionaries are:

- Chairmen of local government Service Commissions
- Permanent Secretaries of Ministries of local government
- Auditors general of LGAs
- Secretaries of LGAs
- LGA\staff pension boards
- Heads of departments of local government studies in the three universities of ABU, OAU, UNN
- Local Government Committee members
- Observers from NULGE, ALGON, .

The extent to which the National Councils have actually enhanced the coordination of service delivery among the tiers of government has been difficult to determine. It appears the state and federal tiers of government may not be taking full advantage of the National Councils to develop purposeful relationshi

ps towards better coordination of service delivery. For example the capacity of Lagos Water Corporatio n (LWC) to supply the people of Lagos with water has been constrained by inadequate power supply by PHCN and supply of contaminated water to the Corporation by and Rural Development Agency (OORB RDA). PHCN, OORBRDA and LWC are members of the Technical Committee on Water Resources. One w ould have thought that the involvement of these three agencies in the same committee should have en hanced better working relationships.

One the other hand it can be argued that the duration of the technical committee meeting is not long en ough for these agencies to have a meaningful relationship. It seems the National Councils are more inv olved in policy formulation. Policy implementation is the responsibility of individual states. Decisions t aken at the councils are still subject to approval by the States. National Councils can only appeal to the States to implement such decisions. This explains why certain decisions are implemented in some stat es and not in others. The advisory status of these councils undermines their ability to ensure co-ordinat ion.

MOIGA has three arms: Intergovernmental Relations; Youth Development; and Special Duties, and sever al departments: State and Local Government; Special Duties; Youth Development; Planning, Research a nd Statistics; Finance; and Personnel. The department of immediate relevance to this study is the State and Local Government department whose mandate it is to:

• Provide strategic and policy advice to the Executive arm of government (especially the President)
• Review and analyse policies, programmes and legislation
• Identify, recommend and facilitate the delivery of effective/optional solutions to emerging issues
• Provide awareness and drive information sharing on important issues and initiatives
• Facilitate training and provision of technical assistance in the area of capacity building to state and lo cal government employees
• Coordinate intergovernmental and inter-agency relations among the three tiers
• Articulate and develop a framework to facilitate the selection process for the setting of Federal Govern ment priority programmes (e.g. HIV/AIDS prevention programme)
• Oversee the monitoring of selected priority federal funded projects
• Act as a secretariat for relevant intergovernmental forum/committees and provide support services in the areas of planning, and conduct intergovernmental meetings where required.

However, much of the work of the State and Local Government department has revolved around capaci ty building. It is therefore not surprising that MoIGA is unaware of what goes on in the field in the area of service delivery by agencies such as UBE, NACA, NPI and NPHCDA.

7. The National Planning Commission (NPC)

The NPC is billed for restructuring and the aim is to provide the Executive Arm (in particular the Presidency) with an instrument that enables it:

• Promote fresh perspectives, insights and approaches in the design of government strategy, policy and programmes;
• Comprise a principal channel for fostering informed dialogue among government, the private sector a

nd civil society;
• Provide timely knowledge, information and analysis to the President and Executive Council;
• Promote greater accountability among government agencies for the outcomes of policies and programmes;
• Facilitate the activities of other leading public agencies in validating, coordinating and monitoring government initiatives; and
• Formulate a medium term strategy and policy agenda as periodically directed by the Presidency and Executive Council.

Policy Making Intergovernmental Structures and Processes at the State Level in Nigeria
In most states there is uniformity in the role that NCE plays in setting the policy framework for states. Some examples of intergovernmental structures at the state level in the Nigerian state according to DFID (2005) include:

a. State Local Government Ministries
The ministries of local governments are a key link between states and local governments and they play that role effectively. They conduct fora to gather views of LGA chairs and communicate policy. They manage the joint account through which federal transfers are made. And the respective Local Government Service Commissions are responsible for the staff of LGAs. There is more of control than co-ordination.

b. State Finance and Planning Ministries
These ministries are pivotal in the sense that their mandate requires them to liaise with all ministries. The planning ministries work closely with the NPC. However, there is an apparent lack of capacity to fulfil their roles effectively.

c. Local Government Authorities (LGAs)
LGAs collaborate actively with the education and health ministries to deliver services
and to a lesser degree in the water sector. Co-ordination and cooperation in road construction and maintenance is virtually non-existent. Broadly, LGAs are lacking in political autonomy and limited by their capacity to generate resources. They also have capacity to deliver service due to low/inadequate competence of staff as well as a weak or rather non-existent planning capacity.

d. State Ministries of Education
In most of the states, education emerges as the sector with the best vertical cooperation. Primary education in particular presents a positive picture of what can be achieved when the three tiers work together. The positive reports about cooperation within the sector are all the more remarkable given the large number of parastatals that could confuse the picture and make coordination more difficult. But the systems in place seem able to overcome this potential hindrance.

There is collaboration in the area of data collection with information passing through zonal offices before being analysed in state and federal ministries. The school inspection system aims to ensure that na

tional standards are maintained such that the qualifications of students are acceptable everywhere in t he Federation. Operation of the examination system is valuable in bringing staff from the different tiers together. For instance regular meetings at which decisions are actually made between National Council on Education (NCE) and state ministry staff help build up a collaborative spirit.

The sector is strong on policy formulation and dissemination but unsurprisingly less able to monitor an d enforce implementation. All three tiers carry out schools inspections. In principle they examine differe nt factors but whether this distinction is entirely clear to the inspectors or the inspected is uncertain. Bu t the main problem is
that often the reports do not reach anyone who can do anything useful with them. At primary level there has been something of a proliferation of donor programmes especially related to girl child education. A ccording to DFID (2005), it would make management simpler if the donors combined programmes. Thi s coordination should be the responsibility of federal level institutions such as the NPC and the Federal Ministry of Education.

e. State Ministries of Health

Despite all three tiers having a role in actual delivery of services, health presents the next most positive picture as regards vertical cooperation. But the overlaps are significant. At tertiary level the Federal Med ical Facilities (FMC) provide specialist advanced level care through teaching hospitals. But pressure fro m the consumer also means that they often provide some Primary Health Care (PHC). The state govern ments offer the next level that caters for both PHC and provides some less complicated operative care t hrough secondary hospitals and clinics. The LGAs operate clinics and dispensaries and deal only with PHC.

f. State Ministries of Works – Road Construction and Maintenance

The level of co-operation varies markedly across states and between the tiers. Road planning is an area that cries out for joint decision making or the economic benefits will not be fully gained. States do hav e to consult with the federal department about where and how their roads join; the LGAs are said not to alway s comply even with this procedure. Road planning tends to be a politicised issue in . A number of federal officials believe that choices about state level road planning were largely made by politicians a nd not necessarily for sound economic reasons.

g. State Ministries of Water Resources

The most positive relations reported were in cooperation between states and LGAs in rural water suppl y. These occur most obviously when the injection of donor funds necessitates cooperation and when th e donor also facilitates the building of relations.